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Case Number: 26STCV00548 Hearing Date: August 3, 2026 Dept: 507

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 507

TENTATIVE RULING

GREGORY MURPHY, ET AL.,

Plaintiffs,

v.

JOHN KLARIN, ET AL.

Defendants.

Case No: 26STCV00548

Hearing Date: August 3, 2026

Calendar

Number: 11

Defendants John Klarin and Anne-Marie Kent move
for judgment of the pleadings of the complaint and a motion to strike.

Defendants' Motion for Judgment on the Pleadings
and Motion to Strike are DENIED.

Background

Plaintiffs Gregory Murphy and Kristin J. Lanford
leased residential premises from Defendants John Klarin and Anne-Marie Kent,
the owners and managers of the property.
Plaintiffs allege Defendants failed to maintain the property in a
habitable condition.

On

January 8, 2026, Plaintiffs filed a complaint against Defendants Klarin and
Kent alleging (1) breach of implied warranty of habitability; (2) breach of
statutory warranty of habitability; (3) breach of the covenant of quiet
enjoyment; (4) negligence; (5) violation of Civil Code section 1942.4; (6)
private nuisance; (7) violation of Long Beach Ordinance No. Ord 20-0044; (8)
violation of unfair competition law.

On

April 14, 2026, Defendants filed a motion for judgment on the pleadings and
motion to strike. On July 21, 2026,
Plaintiffs filed oppositions to both motions.
On July 27, 2026, Defendants filed replies.

Legal Standard

Motion

for Judgment on the Pleadings

A motion for judgment on the
pleadings has the same function as a general demurrer but is made after the
time for demurrer has expired. (Code
Civ. Proc., § 438, subd. (f).) Judgment
on the pleadings is proper when "the complaint states facts sufficient to
constitute a cause or causes of action against the defendant and the answer
does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc., § 438, subd.
(c)(1)(A).) Except as provided by
statute, the rules governing demurrers apply.
(Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th

1005, 1012.) “Like a demurrer, the grounds for the motion [for judgment on the pleadings] must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Id. at 1013.) In ruling on a motion for judgment on the pleadings, “[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true.” (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.)

“A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself.” (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.)

“Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.)

Motion to Strike

A party may move to strike matters from an opposing party's pleading if it is irrelevant, false or improper. (Code Civ. Proc. §§ 435, 436, subd. (a).) Motion to strike may also target all or any part of pleadings not filed or drawn in conformity with the applicable laws, rules or orders. (Code Civ. Proc., § 436, subd. (b).) A Motion to Strike is the proper procedure for testing the adequacy of a punitive damages allegation because punitive damages are not a cause of action. (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 164.)

Discussion

Motion for Judgment on the Pleadings

In cases involving a direct competitor, an unfair business practice is narrowly defined. “When a plaintiff who claims to have suffered injury from a direct competitor's ‘unfair’ act or practice invokes section 17200, the word ‘unfair’ in that section means conduct that

threatens an incipient violation of an antitrust law, or violates the policy or spirit of one of those laws because its effects are comparable to or the same as a violation of the law, or otherwise significantly threatens or harms competition.” (Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 187.)

In consumer cases, it is unclear if the Cel-Tech definition also exclusively applies or if the broad pre-Cel-Tech definition applies: “[S]ection 17200 of the Business and Professions Code defines ‘unfair competition’ to include, as relevant, ‘unlawful, unfair or fraudulent business practice(s)’...It would be impossible to draft in advance detailed plans and specifications of all acts and conduct to be prohibited, since unfair or fraudulent business practices may run the gamut of human ingenuity and chicanery.” (Moters, Inc. v. Times Mirror Co. (1980) 102 Cal.App.3d 735, 740.) Thus, whether a business is unfair is a fact intense inquiry that requires the Court to act as a court in equity. “It is really quite impossible” to make such a determination on demurrer. (Id.)

“‘Unlawful business activity’ proscribed under section 17200 includes anything that can properly be called a business practice and that at the same time is forbidden by law.” (Farmers Ins. Exchange v. Supr. Ct. (1992) 2 Cal.4th 377, 383.) An action under B&PC 17200 based on an unlawful business practice “borrows violations of other laws and treats these violations, when committed pursuant to business activity, as unlawful practices independently actionable under section 17200 et seq. and subject to the distinct remedies provided thereunder.” (Id.)

By virtue of a 1992 amendment, the UCL covers single acts of misconduct. (Madrid v. Perot Systems Corp. (2005) 130 Cal.App.4th 440, 463-464; Klein v. Earth Elements, Inc. (1997) 59 Cal.App.4th 965, 969, fn. 3.) A business “practice” can violate the UCL even if it affects only a single “victim.” (Allied Grape Growers v. Bronco Wine Co. (1988) 203 Cal.App.3d 432, 452-453 (“There is nothing in the word ‘practice’ that necessarily limits section 17200 cases to those actions involving multiple victims”).)

Defendants move for judgment on the pleadings of the eight cause of action for violation of Business and Professions Code section 17200. Defendants argue Plaintiffs cannot state a 17200 claim based on a single transaction between Plaintiffs and Defendants. Defendants argue a 17200 claim requires a course of conduct or a pattern of behavior. Defendants' rely on *Hewlett v. Squaw Valley Ski Corp.* (1997) 54 Cal.App.4th 499 for the principle that a single act of misconduct or a single transaction cannot form the basis of a 17200 claim.

Hewlett relied on authority that pre-dates the 1992 amendment to the UCL, specifically *State of California ex rel. Van de Kamp v. Texaco, Inc.* (1988) 46 Cal.3d 1147 ("Van de Kamp"), because it involved a lawsuit filed in 1989 and it applied the version of 17200 that existed in 1989. The 1992 Amendment to Business and Professions Code section 17200 was enacted in response to the Supreme Court's holding in *Van de Kamp*, as explained in *United Farm Workers of America, AFL-CIO v. Dutra Farms* (2000) 83 Cal.App.4th 1146, 1163:

"In response to the California Supreme Court's 1988 ruling that a "business practice" under Business and Professions Code section 17200 must encompass more than a single transaction (see *State of California ex rel Van De Kamp v. Texaco, Inc.* (1988) 46 Cal.3d 1147, 1169–1170, 252 Cal.Rptr. 221, 762 P.2d 385), the Legislature amended the statute in 1992 to provide that 'unfair competition shall mean and include any unlawful, unfair or fraudulent business act or practice....' The California Supreme Court has interpreted the 1992 amendment as overruling that part of *Van De Kamp* that interpreted the statute to require more than a single 'act.' (*Stop Youth Addiction, Inc. v. Lucky Stores, Inc.* (1998) 17 Cal.4th 553, 570, 71 Cal.Rptr.2d 731, 950 P.2d 1086.) Accordingly, under the current version of the statute, even a single act may create liability." (*United Farm Workers of America, AFL-CIO v. Dutra Farms* (2000) 83 Cal.App.4th 1146, 1163 (emphasis added).)

A 17200 claim can therefore be based on a single act of misconduct. Even if Plaintiffs only alleged a single act of misconduct, that would not be grounds to move for judgment on the pleadings. However, Plaintiffs have alleged more than a single unfair business

act. Plaintiffs allege multiple acts of misconduct in violation of multiple laws over the length of Plaintiffs' tenancy, including failure to remediate rodent and cockroach infestations and collection of rent despite the property being uninhabitable and cited by government agencies for the habitability issues.

(Complaint, ¶¶8-10, 46.)

Plaintiffs also allege that Defendants engaged in a regular practice of disregarding tenants' rights and violating applicable laws. (Complaint, ¶45.)

Defendants' motion for judgment on the pleadings is therefore denied.

Motion to Strike

Defendants move to strike Plaintiff's punitive damages claim on grounds that Plaintiffs fail to allege malice, oppression or fraud.

"'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (CC §3294(c)(1).) "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (CC §3294(c)(2).)

Plaintiffs allege Defendants had actual and constructive notice of the habitability issues but failed to remediate them despite repeated complaints from Plaintiffs and notices by governmental entities. (Complaint, ¶¶8-11, 32.) These habitability issues included rodent and insect infestations. (Complaint, ¶8.) Plaintiffs allege Defendants demanded rent, collected rent and issued a notice of rent increase in violation of Civil Code section 1942.4. (Complaint, ¶¶30-33.) Plaintiffs were Defendants' tenants and were forced to rely on Defendants to perform repairs and maintain the property in a habitable condition. A tenant may seek general and punitive damages for breach of the warranty of habitability. (Smith v. David (1981) 120 Cal.App.3d 110, 112, fn. 3.)

Based on these facts, a reasonable juror could conclude that Defendants acted with malice based on

despicable conduct undertaken in conscious disregard of Plaintiffs' rights and safety. A reasonable juror could also find that the Defendants' conduct qualifies as oppression. In addition, incorporation of the punitive damages allegations by reference into each cause of action is not improper or irrelevant to the complaint when viewed as a whole. The motion to strike punitive damages is denied.

Defendants

also move to strike the prayer for attorney's fees except as to the fifth and seventh causes of action for violation of Civil Code section 1942.4 and violation of Long Beach Ordinance No. Ord 20-0044. Defendants argue there is no legal basis alleged for recovery of attorney's fees in connection with the remaining causes of action for breach of warranty of habitability, breach of statutory warranty of habitability, breach of the covenant of quiet enjoyment, negligence, private nuisance and violation of Business and Professions Code section 17200.

Plaintiffs'

prayer for relief, paragraph 5 seeks reasonable attorney's fees and costs pursuant to contract, the Long Beach Tenant Anti Harassment Ordinance and Section 1942.4 of the Civil Code.

Plaintiffs' prayer for attorney's fees is made as to each and every cause of action. Plaintiffs' allegation that fees are provided by the parties' contract is sufficient to plead attorney's fees as to each and every cause of action. Whether Plaintiffs can actually establish this allegation is not at issue on a motion to strike. Defendants' motion to strike the prayer for attorney's fees is denied.

Defendants'

motion to strike is therefore denied.